ADMINISTRATIVE REVIEW TRIBUNAL

BRISBANE REGISTRY

Tribunal Numbers:	**2023/3361, 2023/3363 and 2023/4494**
First Applicant:	**VIDA REID**
Second Applicant:	**SIMON REID**
Third Applicant:	**FORWARD FOCUSED GROUP PTY LTD**
Respondent:	**COMMISSIONER OF THE NDIS QUALITY AND SAFEGUARDS COMMISSION**

SECOND APPLICANT'S PROPOSED MINUTE OF ORDER

in response to the Respondent's Proposed Minute of Order and covering correspondence dated 14 August 2026

A. Introduction

1. The Second Applicant, Mr Simon Reid, files this proposed minute in response to the Respondent's Proposed Minute of Order dated 14 August 2026 and its covering correspondence of the same date, filed pursuant to the direction at paragraph 41 of the Tribunal's decision of 31 July 2026.

2. The Second Applicant does not seek to reopen the severance question and accepts that the three applications remain joined. He does not oppose the Respondent's proposed order 1 in principle: a supplementary tender bundle under section 23 is a necessary step, and is overdue. His concern is with the conditions attached to it, with the sequence of the pleadings, with the absence of any process for defining the issues the hearing must actually decide, and with the estimate.

3. The Second Applicant's proposed orders appear in Part H. In short, he seeks: determination of the section 70 application; a separate question directed to the lawfulness of the order as varied, which if answered in his favour removes an entire limb of the hearing; a schedule allocating and particularising the allegations; the Respondent's position on witnesses before the Applicants plead; determination of the interpreter request; and an estimate fixed on the hearing the Tribunal will actually conduct.

B. The estimate of two days cannot presently be sustained

4. At paragraph 38 of its decision the Tribunal identified three matters on which findings will be required: whether NDIS funding was claimed for services that were not provided; whether either individual applicant intimidated or harassed any participant; and whether either individual applicant contravened his or her banning order.

5. Paragraph 35 of the decision names seven participants in respect of whom claims are said to have been made. Their accounts are said to be supported by the statements of four further individuals. There are three applicants. The First Applicant has asked the Tribunal to appoint an interpreter.

6. **A listing of two days is achievable only if the participants and the other makers of statements are not called.** The Second Applicant proceeds on the footing that the Respondent's estimate reflects an intention to rely upon written statements without calling their makers. If that is not the Respondent's intention, the estimate is unrealistic and should be corrected now rather than at the door of the hearing.

7. That matters because of the basis on which these applications were kept together. At paragraph 39(e) the Tribunal reasoned:

> *"if the hearing of the applications was severed the named NDIA participants would face the prospect of needing to give evidence on a number of occasions and potentially be subject to cross-examination."*

8. That reasoning presupposes that the participants give evidence *once*. A timetable under which they give evidence not at all is not consistent with the footing on which the applications were kept together. The Second Applicant does not seek to reopen that decision. He seeks only that the Respondent state its position on witnesses, so that the Tribunal can fix an estimate that reflects the hearing it will actually have to conduct.

C. A separate question that would shorten or resolve the contravention issue

9. The third matter identified at paragraph 38(c) — whether either individual applicant contravened his or her banning order — depends on the terms of the orders. The banning order made against the Second Applicant on 21 December 2022 prohibited a specified activity: "providing disability supports and services to NDIS-funded participants". On internal review on 21 April 2023 it was broadened to prohibit "any involvement with or in the NDIS sector, in any capacity", including "providing disability supports and services, directly or indirectly", "providing labour hire workers to support NDIS providers", and "providing support, funding, guidance or assistance of any form to an NDIS provider".

10. In *Sunflower Care Services Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission (No 2)* [2025] FCA 1442, the Federal Court quashed a banning order made under section 73ZN(2) which prohibited a person from being "directly or indirectly involved in the provision of supports or services to people with disability". Feutrill J held at [131]:

> *"Having regard to the consequences for breach, an implicit requirement of a banning order made under s 73ZN is that it express the specified activities in such terms that the order is reasonably capable of being obeyed… If the banning order is unclear, uncertain, ambiguous or open to competing interpretations it is not reasonably capable of being obeyed and it does not meet the description of a banning order that is authorised under s 73ZN of the NDIS Act."*

11. The order as varied against the Second Applicant is expressed more broadly than the order quashed in that case. An order that is not reasonably capable of being obeyed is not capable of being contravened. If the order as varied does not meet the description of a banning order authorised under section 73ZN, the contravention issue at paragraph 38(c) cannot be resolved against the Second Applicant by reference to it.

12. The question is suited to early determination because it is confined to the face of the orders, the statute and authority; it requires no witness and no finding of credit; and the relevant chronology is recorded in the Respondent's own documents. The internal review decision concerning the Second Applicant records that the registration application for Dream Big Employment Pty Ltd was submitted on **29 October 2022** — before the notice of intention of 17 November 2022 and before the banning order of 21 December 2022 were issued.

13. If the question is answered in the Second Applicant's favour, an entire limb of the final hearing falls away and the estimate shortens accordingly. If it is answered against him, nothing is lost: the issue is determined once, early, and on a proper basis.

D. The section 70 application should be determined, not merely addressed

14. The Respondent's proposed order 1.2 makes the supplementary tender bundle "subject to the outcome of" its application for non-disclosure orders of 7 May 2026, and its covering correspondence suggests that the application "could also be addressed at the foreshadowed telephone directions hearing". The Second Applicant agrees with that suggestion, with one qualification: the application should be determined, not merely addressed.

15. The application has been before the Tribunal since 7 May 2026 and the Second Applicant's opposition was lodged on 19 May 2026, so both parties' positions are fully set out in writing and short oral submissions at the directions hearing would permit its determination without further delay. Until it is determined, neither the content of the supplementary bundle nor the scope of the Second Applicant's case can be settled.

E. The allegations must be allocated and particularised

16. At paragraph 4 of its decision the Tribunal recorded that the Second Applicant was a director of Forward Focused Group Pty Ltd between 28 August 2020 and 3 January 2021, and again from 1 November 2022. At paragraph 34(a) it observed that the two individual applicants held office "albeit not at the same time".

17. Every claim period listed at paragraph 35 falls between 3 January 2021 and August 2022 — within the period in which the Second Applicant held no office in Forward Focused Group Pty Ltd. **The Second Applicant was a director of Hybrid Hive Pty Ltd from 17 February 2022,** and does not suggest otherwise. That is why the allocation matters: whether he held office in the entity that made a given claim, at the time it was made, cannot be determined while the claims are attributed collectively to "FFG and Hybrid".

18. Section 73ZN(2) empowers the Commissioner to make a banning order where she *reasonably believes* that the particular person is not suitable to be involved in the provision of supports or services. That belief must rest on material concerning that person — including, where the person is one of several officers and staff of a company, material identifying why the relevant function or failure was his rather than another's.

19. **The intimidation and harassment issue requires the same discipline.** Paragraph 38(b) frames as an issue whether either individual applicant intimidated or harassed any

participant. Neither the banning order and statement of reasons of 21 December 2022, nor the briefing note underlying it, nor the internal review decision of 21 April 2023 concerning the Second Applicant contains any allegation that the Second Applicant intimidated or harassed any participant. If the Respondent intends to advance such an allegation against him at the hearing, it is new matter and should be particularised now.

F. The sequence of the Statements of Facts, Issues and Contentions

20. Under the Respondent's proposed orders 2 and 3, the Applicants file their updated Statements of Facts, Issues and Contentions on 25 September 2026 and the Respondent files its Statement on 23 October 2026. The Applicants would therefore be required to plead to a case that has not been particularised, after which the Respondent would settle its own case having read theirs.

21. The Second Applicant does not press for a reversal if the Tribunal considers the conventional sequence appropriate. He asks instead that the schedules sought in Part E, and the Respondent's position on witnesses, be provided before the Applicants are required to file. With those, the conventional sequence is workable. Without them, it is not.

G. Two further matters the Respondent's minute does not address

22. **The interpreter.** At paragraphs 2(e) and 41 of its decision the Tribunal recorded that the First Applicant seeks the appointment of an interpreter. Section 68 of the *Administrative Review Tribunal Act 2024* (Cth) requires the Tribunal to comply with such a request unless it considers that the person does not require an interpreter. The question bears directly on the length of the hearing and should be resolved before the matters are listed.

23. **The stated foundation of the banning order.** The internal review decision concerning the Second Applicant (Commission references IR (7) 22/23 and ICM23/100) records at paragraph 46 that the reviewer had regard to "the ongoing investigation by the NDIA and law enforcement agencies into the fraudulent conduct Mr Reid is alleged to have engaged in". On 28 February 2024 the Respondent's solicitors informed the Tribunal that a brief of evidence in relation to the Second Applicant had not been sent by the NDIA to the Commonwealth Director of Public Prosecutions. The Second Applicant has never been charged. If the Respondent continues to rely upon an investigation, it should identify it.

H. Orders sought

1. The Respondent's application of 7 May 2026 under section 70 of the Administrative Review Tribunal Act 2024 (Cth) be determined at, or promptly following, the directions hearing, on the materials already filed, and before the supplementary tender bundle is filed, with the date in the Respondent's proposed order 1 adjusted if necessary.

2. By no later than 28 August 2026, the Respondent produce to the Second Applicant certified or sealed copies of the banning order made against him on 21 December 2022 and of that order as varied on 21 April 2023.

3. Pursuant to sections 53 and 79 of the Administrative Review Tribunal Act 2024 (Cth), the following question be determined separately from, and in advance of, the balance of the proceeding, on the documents and without oral evidence, at a hearing at which the parties may make oral submissions: *whether the banning order made against the Second Applicant, as varied on 21 April 2023, is expressed in terms reasonably capable of being obeyed and meets the description of a banning order authorised under section 73ZN(2) of the National Disability Insurance Scheme Act 2013 (Cth); and if not, what consequence follows for the issue identified at paragraph 38(c) of the Tribunal's decision of 31 July 2026.*

4. By no later than 11 September 2026, the Respondent file and serve a statement of the precise decision it will ask the Tribunal to make in each application under section 105 of the Administrative Review Tribunal Act 2024 (Cth), including, if it seeks a substituted banning order, the complete operative wording, the specified activities, any conditions, the duration and the statutory provision relied upon.

5. The statement in order 4 also state whether the Respondent accepts that the reasoning in *Sunflower Care Services Pty Ltd v Commissioner of the NDIS Quality and Safeguards Commission (No 2)* [2025] FCA 1442 requires any part of any order under review to be set aside; if it does not, each textual or factual distinction relied upon; and whether it contends that any invalid wording is severable, and if so the complete operative prohibition said to remain.

6. The statement in order 4 also state whether the Respondent relies upon section 73ZN(2B) of the National Disability Insurance Scheme Act 2013 (Cth), or upon any other power not relied upon by the original decision-makers or the internal reviewers, and if so the basis upon which that power is available in these reviews, including in respect of conduct predating its commencement.

7. By no later than 11 September 2026, the Respondent file and serve a schedule stating, for each claim relied upon: (a) the participant; (b) the date or period of the claim and the amount; (c) which entity submitted the claim, being Forward Focused Group Pty Ltd or Hybrid Hive Pty Ltd; (d) the source document relied upon; (e) the act or omission of the Second Applicant personally on which the Respondent relies; (f) where the act relied upon is an omission said to arise from his office, the facts said to make the relevant function his responsibility rather than that of any other officer, employee or contractor; (g) the evidence relied upon; and (h) whether that material was before the original decision-maker or the internal reviewer, or is relied upon as new material.

8. By no later than 11 September 2026, the Respondent file and serve a schedule stating, for each allegation of intimidation or harassment relied upon against the Second Applicant (if any): the participant, the date, the conduct alleged, the evidence relied upon, and whether the allegation formed part of the basis of either decision under review in matter 2023/3363.

9. By no later than 11 September 2026, the Respondent file and serve a notice identifying (a) each witness it intends to call to give oral evidence, and (b) each statement upon which it intends to rely without calling its maker.

10. By no later than 11 September 2026, the Respondent file and serve a schedule identifying any investigation upon which it continues to rely, stating the agency conducting it, its subject, its commencement date, its current status and the date and source of the last confirmed activity.

11. Orders 2, 4, 5, 6, 7, 8, 9 and 10 be complied with before the Applicants are required to file updated Statements of Facts, Issues and Contentions, and the date in the Respondent's proposed order 2 be adjusted accordingly if necessary.

12. Any question of the appointment of an interpreter under section 68 of the Administrative Review Tribunal Act 2024 (Cth) be determined before the matters are set down for hearing.

13. The estimated duration of the hearing be fixed after the Respondent has complied with order 9, and the parties be at liberty to make submissions on the estimate at that time.

14. Otherwise, the Respondent's proposed orders 1 to 4 be made. In place of the Respondent's proposed order 5, the matters be set down for hearing at the first available date after 6 November 2026, with the estimated duration fixed in accordance with order 13.

15. Liberty to apply.

Dated: _____ 2026

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Simon Reid

Second Applicant, in person